

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
MARTIN LAWRENCE,

Plaintiff,

Filed: _____

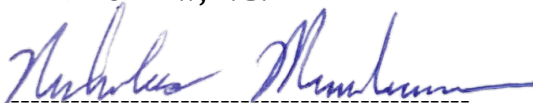
Index No.:

-against-

THE CITY OF NEW YORK, POLICE OFFICER IHOR
ZAVERUKHA, Shield No. 15866, John Does #1-3
Defendants.
-----XPlaintiff designates
KINGS County as the
place of trial.The basis of venue is:
The situs of occurrence

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, to, if the complaint is not served with the summons, to serve a notice of appearance, on the plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
May 26, 2020The nature of this action is for violation of Plaintiff's Civil and Constitutional Rights.
The relief sought is monetary damages.**LIAKAS LAW, P.C.**

BY: Nicholas Mindicino, ESQ.

*Attorney for Plaintiff*65 Broadway, 13th Floor
New York, N.Y. 10006
(212) 937-7765

If you fail to respond, a judgment will be taken against you, by default, with interest from Aug 9, 2019.

Defendants:**City of New York**Office of the Corporation Counsel
100 Church Street
New York, New York 10007**Police Officer Ihor Zaverukha, Shield No. 15866**New York City Police Department - 67th Precinct
2820 Snyder Ave, Brooklyn, NY 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MARTIN LAWRENCE,

Plaintiff,

Index No.:

-against-

VERIFIED
COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER IHOR
ZAUERUKHA, Shield No. 15866, John Does #1-3

Defendants.
-----X

The Plaintiff, MARTIN LAWRENCE, by his attorneys Liakas Law, P.C., as and for this
Complaint, respectfully alleges:

NATURE OF THE ACTION / PRELIMINARY STATEMENT

1. This is a civil rights action for money damages brought pursuant to 42 U.S.C. §§ 1981, 1983, and 1988, the Fourth and Fourteenth Amendments of the United States Constitution, Article I, Sections 6 and 12 of the Constitution of the State of New York, and the common law of the State of New York.

2. The claim arises from an August 9, 2019 incident in which Officers of the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiff to false arrest and malicious prosecution.

3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

VENUE AND NOTICE OF CLAIM

4. Venue is proper in the Supreme Court of the State of New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York is subject to personal jurisdiction in the Supreme Court of the State of New York, Kings County.

5. Within 90 days of the events giving rise to this claim, plaintiff filed written notice of claim with the municipal defendant(s). Over 30 days have elapsed since the filing of that notice, and this matter has not been settled or otherwise disposed of.

PARTIES

6. At all times relevant hereto, Plaintiff, MARTIN LAWRENCE was and is a natural person, residing in Kings County, City and State of New York

7. THE CITY OF NEW YORK (or “the City”) is a municipal corporation organized under the laws of the State of New York. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or “NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

8. Police Officer Ihor Zaverukha, Shield No. 15866 was, at all times here relevant, a police officer of the NYPD, and as such was acting in the capacity of agent, servant and employee of the City of New York. On information and belief, defendant Zaverukha was involved in the illegal arrest and prosecution of plaintiff and/or failed to intervene in the actions of his/her fellow officers. Defendants Zaverukha is sued in his/her individual capacity.

9. John Does #1-3 are individuals whose name are currently unknown to plaintiff, are employees of the NYPD, and are sued in their individual capacities. John Does #1-3 were NYPD officers who participated in the search and arrest of plaintiff as described below.

10. At all times mentioned herein, defendants were acting under color of state and local

law, to wit, under color of statutes, ordinances, regulations, policies, customs and usages of the City of New York and the State of New York.

FACTUAL ALLEGATIONS

11. On or about April 12, 2019 Plaintiff was arrested in Queens NY.
12. In relation to the April 12, 2019 arrest, the Court issued an order of protection precluding Plaintiff from having contact with his minor daughter.
13. The charges brought against Plaintiff related to the April 12, 2019 arrest were dismissed on or about May 9, 2019.
14. The order of protection issued regarding the April 12, 2019 arrest was vacated by the dismissal of the underlying charges.
15. On or about July 23, 2019 the Queens Family Court issued an order returning custody of Plaintiff's daughter to Plaintiff.
16. On or about August 9, 2019, Plaintiff attempted to retrieve his daughter from her mother's home.
17. Plaintiff's daughter's mother refused to release Plaintiff's daughter to him as required by the family court order.
18. Plaintiff called police for assistance retrieving his daughter.
19. When defendant Police Officer Zaverukha arrived, the officer accused Plaintiff of violating the order of protection which was issued regarding the April 12, 2019 arrest.
20. Plaintiff produced a "raised seal" Court issued disposition proving that the charges against him stemming from April 12, 2019 arrest had been dismissed, and the order of protection vacated.
21. Despite Plaintiff's production of the raised seal certified disposition, Officer Zaverukha placed Plaintiff under arrest for alleged violation of the order of protection.

22. At the time of the arrest Officer Zaverukha was aware that no order of protection was in effect.

23. Nevertheless, Plaintiff was taken to a police precinct and eventually to Kings Central Booking to await arraignment

24. Defendant Zaverukha was the arresting officer for plaintiff. Upon information and belief, Defendant Zaverukha took plaintiff into physical custody, processed his arrest, prepared arrest paperwork related to his arrest, and coordinated with the District Attorney's office related to the prosecution of plaintiff.

25. Plaintiff was charged with criminal contempt in the second degree.

26. Plaintiff was arraigned in the early evening on August 10, 2019.

27. At arraignment the People moved to dismiss the charges as the underlying order of protection had been dismissed.

28. The Court granted the motion and dismissed all charges, noting that Plaintiff "has raised seal document showing that underlying complaint has been already dismissed..."

29. On August 10, 2019 all charges against Plaintiff were dismissed.

30. As a direct and proximate result of the malicious and outrageous conduct of defendants as set forth above, Plaintiff suffered injuries including but not limited to emotional trauma, harm and distress, mental anguish, fear, embarrassment, and humiliation and loss of liberty.

DAMAGES

31. As a direct and proximate result of the acts of defendants, plaintiff suffered the following injuries and damages:

a. Violation of his right to Due Process of Law under the Fourteenth Amendment

to the United States Constitution;

- b. Violation of his rights under the Fourth Amendment to the United States Constitution to be free unreasonable search and seizure;
- c. Violation of his New York State Constitutional right under Article 1, Section 6 to Due Process of Law;
- d. Violation of his New York State Constitutional right under Article 1, Section 12, to be free from unreasonable searches and seizures;
- e. Loss of Liberty;
- f. Emotional distress, including fear, embarrassment, frustration, extreme inconvenience, and anxiety;

FIRST CAUSE OF ACTION

(42 U.S.C. § 1983 – as to Individual Defendants)

- 32. The above paragraphs are here incorporated by reference.
- 33. Defendants have deprived Plaintiff of his civil, constitutional and statutory rights under color of law and have conspired to deprive him of such rights and are liable to Plaintiff under 42 USC § 1983.
- 34. Defendants' conduct deprived Plaintiff of his right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution.
- 35. Defendants falsely arrested Plaintiff and failed to intervene in the obviously illegal actions of fellow officers.
- 36. Plaintiff has been damaged as a result of defendants' wrongful acts.

SECOND CAUSE OF ACTION
(False Arrest – as to Individual Defendants)

37. The above paragraphs are here incorporated by reference
38. Defendants subjected plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
39. Defendants intended to confine plaintiff and in fact confined him.
40. Plaintiff was conscious of the confinement and did not consent to it.
41. The confinement was not privileged.
42. Plaintiff was damaged.

THIRD CAUSE OF ACTION
(Respondeat Superior – As to City of New York)

43. The above paragraphs are here incorporated by reference.
44. The defendants' tortious acts were undertaken within the scope of their employment by Defendant City of New York and in furtherance of the Defendant City of New York's interest.
45. As a result of defendants' tortious conduct in the course of their employment and in furtherance of the business of Defendant City of New York, Plaintiff was damaged.

REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that judgment be entered as follows: Plaintiff demands compensatory damages, in the amount not to exceed jurisdictional limits, to the above-stated causes of action against all Defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988; and such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

Dated: May 26, 2020
New York, New York

Yours, etc.
LIAKAS LAW, P.C.

By: 

Nicholas Mindicino, ESQ.
Attorneys for Plaintiff
65 Broadway, 13th Floor
New York, New York 10006
(212) 937-7765

STATE OF NEW YORK)
) ss
COUNTY OF NEW YORK)

I, the undersigned, an attorney admitted to practice in the courts of New York State, state under penalty of perjury that I am one of the attorneys for Plaintiff in the within action; I have read the foregoing SUMMONS AND COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true. The reason this verification is made by me and not by my client, is that my client are not presently in the County where I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are the materials in my file and the investigations conducted by my office.

Dated: New York, New York
May 26, 2020


A handwritten signature in blue ink, appearing to read "Nicholas Mindicino", is written over a horizontal line.

NICHOLAS MINDICINO, ESQ

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

MARTIN LAWRENCE,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER IHOR
ZAUERUKHA, Shield No. 15866, John Does #1-3
Defendants.

LIAKAS LAW, P.C.
Attorneys for Plaintiff(s)
65 Broadway - 13th Floor
New York, New York 10006
212-937-7765

SUMMONS and VERIFIED COMPLAINT

STATE OF NEW YORK, COUNTY OF NEW YORK, SS:

Nicholas Mindicino, the undersigned, an attorney admitted to practice in the Courts of New York State, affirms the following:

I further certify that my signature below acts as a "certification" for the documents attached hereto, in compliance with section 130-1.1-a of the Rules of the Chief Administrator (22 NYCRR).

Dated: New York, New York
May 26, 2020



Nicholas Mindicino, ESQ.

PLEASE TAKE NOTICE

- () that the within is a (certified) true copy of a Notice of _____ entered in the Office of the clerk of the within Entry named Court on _____
- () that an Order of which the within is a true copy will be presented for Notice of settlement to the Hon. _____ one of the Judges of the Settlement within named Court, on _____, at _____